EPR 113

PUBLIC SPEAKING

QUALITIES OF AN EFFECTIVE PUBLIC SPEAKER

1. **Confidence:** It is the ability to speak boldly without unnecessary fear.
2. **Good voice control:** A speaker should be able to use appropriate volume, tone, and pace.
3. **Eye contact:** In public speaking, maintaining eye contact helps build a connection with the audience.
4. **Organisation:** A speech should have a clear beginning, middle, and conclusion.
5. **Good body language:** Gestures, posture, and facial expressions should support the message.

HOW TO OVERCOME FEAR IN PUBLIC SPEAKING.

- Prepare thoroughly before speaking.
- Practice regularly.
- Know your audience.
- Start with a small group and gradually increase the audience size.
- Use positive thinking.
- Take a deep breath before speaking.
- Focus on communicating the message rather than worrying about making mistakes.

PUBLIC SPEAKING IN THE COURTROOM

MEANING OF A COURT SITTING

A court sitting refers to a formal gathering of a court where a presiding judge or magistrate presides over legal proceedings. During a sitting, cases are heard, evidence is presented, arguments are made, and decisions or orders may be given according to the law.

GENERAL PROCEEDINGS IN A COURT SITTING

1. **Arrival and entering of the judge/magistrate:** In this phase, the court clerk announces the arrival of the judge or magistrate.
2. **Opening of the Court:** The clerk calls the court to order, schedules (dockets) for the day are announced, and the judge confirms the cases.
3. **Calling of cases:** In this phase, cases are called up by the court clerk. They present the defendant's counsel and plaintiff's counsel before the court.
4. **Preliminary matters:** The cases (or preliminary motions/applications) are deliberated here.

5. **Hearing of cases:** The hearing of cases determines the case procedures (e.g., distinguishing a criminal case from a civil case).

RULES & REGULATIONS OF A COURT SITTING

- Dress properly and respectfully.
- Address the judge as “My Lord” or “Your Honour”, as the court rules may require.
- Stand when the judge enters or leaves the courtroom.
- Avoid making unnecessary noise.
- Speak only when permitted.
- Follow the instructions of the court officials.

ADJOURNMENT OF THE COURT

An adjournment occurs when a court sitting is postponed to another date. Reasons for adjournment may include:

- Lack of time.
- Absence or lateness of a party.
- Need for additional preparation.
- Legal applications requiring specific attention.

ADV 115

PETITION

A petition is one of the most common tools used in advocacy to demand change or address grievances.

A petition consists of:

- The identity of the complainant(s).
- The facts (which give rise to the complaints).
- The supporting evidence.
- The specific relief sought.

KEY PARTIES IN LEGAL DISPUTES

1. **Plaintiff:** A plaintiff is a person, group, or organisation that brings a legal action against another person/party in a civil case.
2. **Defendant:** A defendant is a person, group, or organisation against whom a legal action is brought.

IMPORTANCE OF A PETITION

- It creates an official record of the complaint.
- t organises facts logically and professionally.
- It prolongs the timeline and visibility of an issue for official consideration.
- It demonstrates seriousness and credibility.
- It provides a lawful path to address injustice.
- It protects the complainant from accusations of relying on mere speculation.
- It can lead to official investigations and sanctions.

JCY 111

STEPS IN CIVIL & CRIMINAL LITIGATION

CIVIL LITIGATION

It is a legal process that aims to resolve disputes between two parties. In civil litigation, there is no criminal offence; it is not meant to punish, but rather to settle a case or dispute.

CRIMINAL LITIGATION

It is a legal process aimed at punishing a law offender. The Attorney General (or state prosecution) is responsible for driving this type of case.

STEPS IN CIVIL LITIGATION

- **Pre-action consideration:** Before filing a case, the counsel must determine jurisdiction and applicable laws, and whether a pre-action notice is required.
- **The commencement of action:** The suit is commenced by filing an originating process at the registry. Typically, the choice of originating process depends entirely on the nature of the claim being brought before the court.

NOTE: The registrar is responsible for filing a case in the Court.

MAIN TYPES OF ORIGINATING PROCESSES

1. A Writ of Summons.
2. An originating summons.
3. Petitions.

BREAKDOWN OF THE PROCESSES & PROCEDURES

1. **A Writ of Summons:** This process is used for cases involving heavily disputed facts.
2. **The originating summons:** This process is used for the interpretation of law or written documents. It is a process whereby clarification is needed in the law, typically where the material facts are not in dispute.
3. **Petition:** The petition is used for special legal matters such as divorce (matrimonial causes), election petitions, winding up of companies, etc.
4. **Filing of processes:** The claimant or plaintiff files the writ of summons alongside a statement of claim, list of witnesses, and copies of documents to be used in the court.
5. **Service of the originating process:** The court process must be served on the defendant, personally or through a substituted method (such as via publication or delivery to an adult at the last known address if personal service fails).
6. **The Entry of appearance and defence:** The defendant will enter a memorandum of appearance and file a statement of defence and counter-claim if any, within the time prescribed by the court rules.
7. **The reply and close of pleadings:** The claimant may file a reply to the defense; once pleadings are exchanged and deemed closed, the issues in dispute are said to be joined.

MID-TRIAL STAGES & RESOLUTION

1. **The interlocutory application:** These are intermediate applications made to the court while the main lawsuit is still pending. They are used to seek temporary or urgent orders, such as an interim injunction to preserve property or an extension of time to file court papers.
2. **The pre-trial conference:** They make use of the ADR (Alternative Dispute Resolution) mechanisms. This stage helps the parties narrow down the core issues, explore potential settlements, and settle the case out of court if possible.
3. **Hearing and trial:** This is the core stage of litigation where both parties formally present their arguments in the courtroom. Counsel call upon their respective witnesses to give testimonies under oath, introduce physical or documentary evidence, and cross-examine the opposing side's witnesses.

FINAL CONCLUDING STAGES

1. **A written address:** After both parties close their respective cases and all evidence has been tendered, the legal counsel for each side prepares and adopts a final written address. This document summarizes the facts, applies relevant legal statutes or case laws, and presents their final arguments to persuade the judge.
2. **The judgement:** This is the final decision delivered by the presiding judge or magistrate. The judge carefully evaluates the evidence, testimonies, and legal arguments presented throughout the trial to determine the rights and liabilities of the parties.
3. **Enforcement of judgement:** Once the court delivers its final ruling, the successful party utilizes legal execution methods to enforce the court order. This ensures they can

recover damages, seize assets, or claim properties awarded to them if the losing party refuses to comply voluntarily.

4. **The appeal:** If either party is dissatisfied with the final decision due to an error in law or fact, they have the right to formally request a higher court to review, vary, or completely overturn the judgment of the lower court.